

FL-25-001700 TRUJILLO VS TRUJILLO

County: stanislaus

Division: Family Law

Department: 14

Hearing date: 2026-08-10

Motion: Petitioner's Request for Order re Set Aside of Dismissal—HEARING REQUIRED. Respondent's default was entered on August 19, 2025. However, thereafter Petitioner failed to appear for a Case Management Conference and failed to submit and obtain a default judgment. An Order to Show Cause (OSC) was issued to Petitioner regarding the failure to appear and to prosecute, and Petitioner failed to appear for the OSC on May 8, 2026. Accordingly, the Court order the Dissolution action dismissed. Petitioner's order request has been filed within six (6) months of the Court's dismissal order and alleges grounds that arguably relate to mistake, inadvertence or excusable neglect. (Code Civ. Proc., § 473(b).) Furthermore, while proof of personal service of Respondent is on file, no Responsive Declaration was filed by Respondent and Respondent remains, in any event, in default and without standing to require notice or be heard except as to certain matters implicating due process rights. All that said, Petitioner's allegations are vague and the Court requires further testimony or evidence before entertaining set aside and since Petitioner alleges statements on which she relied made to her by Respondent, Respondent's appearance and testimony to corroborate these allegations is of interest to the Court. Lastly, the Court notes that, prior to the entry of Respondent's default, and the Court's dismissal order, a Findings and Order After Hearing dated August 11, 2025 by the Court's predecessor in this Department made certain orders that included temporary spousal support expressly noted to be "interim." Given this, the Court has independent authority to set aside the dismissal pursuant to Code of Civil Procedure section 583.161(b) ["An order for spousal support has been issued in connection with the proceeding and the order has not been terminated by the Court"].) The Court's dismissal order of May 8, 2026, does not expressly state termination of the existing support order and the Court may or may not exercise discretion as to termination of the interim support order by operation of law upon entry of the dismissal order. The following are the tentative ruling cases calendared before Judge Maria Elena Ramos-Ratliff in Department #25:

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